AfriForum

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COMPLAINT: SERVICE DELIVERY: MURDER INVESTIGATION: DECEASED PREM EMMANUEL BASDEO: CAS: BROOKLYN CAS 810/06/2018

1. We act for the children of the murdered deceased in this matter.
2. This complaint holds reference to the peculiar circumstances where the body of the deceased has remained undiscovered for the last seven months and the accused is a retired police officer.
3. Our clients have serious concerns regarding the investigation, its progress and the status of the case. Having consulted with them we must indicate that we too share their concerns and are particularly anxious that a possible application in terms of the provisions of section 342 of the Criminal Procedure Act, Act 51 of 1977 might succeed.
4. We are not only concerned with the lack of communication by the Investigating Officer himself but also the inexplicable failure by him to investigate all relevant information or leads that may establish motive for the murder.
5. Some of the main concerns involve the following aspects:

   5.1 After the deceased's disappearance her personal vehicle (registered in the name of the "deceased") was sold to EA Motors in Vereeniging. This

happened whilst the accused was in custody and obviously without the consent of the "registered owner". Undoubtedly the seller must have provided a reason for his possession of the deceased's vehicle and the sale thereof. The circumstances of this sale and the persons involvement must surely be an aspect worthy of investigation. More so when motive remains an unsolved mystery.

5.2 Secondly, both the accused and his sons (stepsons of the deceased) have prevented the daughters of the "deceased" from collecting her personal belongings. They advanced as reasons the fact that the deceased has not been declared dead and that property forms part of the joined estate. This seems very peculiar when all indications are that the accused had consented to the sale of the deceased's vehicle.

5.3 Thirdly, the accused and / or his family have indicated that there was a burglary at his house and allege that the jewellery of the deceased was stolen. We are concerned with the veracity of this allegation and if a case was in fact ever reported to the SAPS. Noticeably also if a version was ever provided and if consequently anyone submitted an insurance claim. This might again raise a possible indication of a motive for monetary gain.

5.4 Fourthly, a very important aspect in the investigation of a spousal killing must surely include the will and policies. Our clients are of the view that the testament of the deceased never formed part of the investigation. If they are correct in their view, this seems very peculiar and indicates an incomplete investigation. Communication with the executor must also be relevant and material to the investigation.

6. This may be an instance caused by a lack of communication, but the attitude of the IO has unfortunately been one of deliberately not sharing information with the family. Whatever his reasons might be, cannot be said to be in the interest of the family who are living in uncertainty.

7. We are informed that the matter was postponed to 1 February 2019 for further investigation. Apparently, the results of the DNA tests are still outstanding. The family not only deserves but professional conduct dictates that the family be kept abreast of developments in the investigations.

8. This, like all other murders, is a very serious matter and may attract unnecessary negative perceptions if not dealt with proficiently.
9. We now implore the SAPS to kindly indicate what the status of the investigation is and / or why the matters mentioned in paragraph 5 have not been dealt with.
10. As the Investigating Officer has decided not to keep the deceased's children appropriately informed of the progress in the investigation, your intervention and response to our request will allow us to do so.

Yours sincerely,

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